



CHAPTER lxx.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Ripley Gas Rowley Regis and Blackheath Gas Sheffield Gas and Swansea Gas. A.D. 1910.
[3rd August 1910.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 3) Act 1910. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

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Ripley Com-
pany may
contract for
purchase of
gas in bulk.

3. The Ripley Water Works and Gas Light and Coke Company Limited may contract for the purchase of gas in bulk and may sell distribute and supply the gas so purchased for all public and private purposes within their limits of supply provided that the gas distributed shall with respect to its quality pressure illuminating power and purity be equal to the gas which the Ripley Water Works and Gas Light and Coke Company Limited are by the Ripley Gas Order 1910 required to supply from the gas works which they are by the said Order authorised to make and maintain.

Saving for
agreement
between
Ripley &c.
Company
and
Butterley &
Company.

4. Nothing in the Ripley Gas Order 1910 hereby confirmed shall prejudice or affect the agreement made the tenth day of September nineteen hundred and nine between the Ripley Water Works and Gas Light and Coke Company Limited and the Butterley Company Limited.

S C H E D U L E.

LIST OF ORDERS.

RIPLEY GAS.—Order empowering the Ripley Water Works and Gas Light and Coke Company Limited to maintain and continue gasworks and to manufacture and supply gas in certain parts of the township of Ripley in the county of Derby and for other purposes.

ROWLEY REGIS AND BLACKHEATH GAS.—Order empowering the Rowley Regis and Blackheath Gas Company to supply gas in the township of Cakemore in the county of Worcester to raise additional capital and for other purposes.

SHEFFIELD GAS.—Order making provision with respect to the quality of gas supplied by the Sheffield United Gas Light Company the holding of ordinary meetings of the Company and for other purposes.

SWANSEA GAS.—Order to extend the limits of supply of the Swansea Gaslight Company and for other purposes.

RIPLEY GAS.

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Order empowering the Ripley Water Works and Gas Light and Coke Company Limited to maintain and continue gasworks and to manufacture and supply gas in certain parts of the township of Ripley in the county of Derby and for other purposes.

Ripley.

Preliminary.

1. This Order may be cited as the Ripley Gas Order 1910.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order Provided that for the purpose of such incorporation section 35 of the said Gasworks Clauses Act 1847 shall be read and construed as though the words from "in case the whole" down to the words "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to the special purposes fund.

Incorpora-
tion of Acts.

4. In this Order the expression "the authorised rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order or by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued.

Interpreta-
tion.

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Ripley.
Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be so much of the township and urban district of Ripley in the county of Derby as is not included within the limits of supply of the Riddings District Gas Company under the provisions of the Riddings District Gas Order 1903.

Undertakers.

Undertakers.

6. The Ripley Water Works and Gas Light and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

Capital.

7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed nineteen thousand pounds consisting of the sum of fourteen thousand pounds share capital already raised by the Undertakers (in this Order referred to as "the original capital") and of the additional capital (in this Order referred to as "the additional capital") to be issued subject to the provisions of this Order not exceeding five thousand pounds including any premium which may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to
be sold by
auction or
tender.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds: A.D. 1910.
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(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary or preference shares or stock of the Undertakers in manner prescribed by resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock as the case may be.

9. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers entitled to dividend. Application
of money.

10. Except as by this Order expressly provided the Undertakers shall not in any year declare out of their profits any larger dividends Limit of
dividend on
capital.

A.D. 1910. on their capital than at the following rates (in this Order referred to as "the standard rates of dividend") namely :—
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Ten pounds in respect of every one hundred pounds of so much of the original capital as has been issued as ordinary capital ;

Five pounds in respect of every one hundred pounds of so much of the original capital as has been issued as preference capital ;

Seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital ; and

Six pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Dividends on different classes of ordinary shares or stock to be paid proportionately.

11. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the authorised rates on each class of ordinary shares or stock in the original capital and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Limit of borrowing powers.

12. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Power to create a special purposes fund.

13.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works. A.D. 1910.
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(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

14. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the authorised rates the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year: Application of further excess of profits over authorised rates.

Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rate on the capital of the Undertakers.

15.—(1) Where in any year the prescribed rates on the ordinary share capital or stock of the Undertakers shall exceed the standard rates of dividend by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the commencement of this Order in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the authorised rates and save as by this Order specially provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund. Power to create a reserve fund and application thereof.

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(2) Provided that the reserve fund of the Undertakers existing at the date of this Order may be and remain applied for the general purposes of the Undertakers to which capital is properly applicable.

Purchase of Lands.

Power to
purchase
additional
lands.

16. The Undertakers may for the purposes of the undertaking purchase take on lease or acquire (by agreement but not otherwise) and hold in addition to the lands described in the schedule to this Order annexed any lands which they may require. Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the said schedule.

Power to
erect cottages
&c. for officers
and servants.

17. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

*Maintenance and continuance of Gasworks Manufacture and sale
of Gas and Residual Products.*

Undertakers
may maintain
and continue
existing gas-
works and
may con-
struct new
gasworks on
lands de-
scribed in
schedule and
may make
and sell gas
&c.

18. The Undertakers may on the lands described in the schedule to this Order annexed so long as they are possessed of the same maintain and continue and alter enlarge extend improve renew or discontinue their existing gasworks and works connected therewith and may construct erect make maintain alter enlarge extend improve renew or discontinue additional gasworks retorts retort houses gasholders receivers purifiers meters apparatus and works for the manufacture distribution storage conversion and sale of gas and of residual products arising in or resulting or producible from or used in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas upon such lands or some part or parts thereof and supply and sell the same and may on the same lands make convert and store residual products as aforesaid and may sell and dispose of the same at the works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

For protec-
tion of Mid-
land Railway
Company.

19. In executing the works by this Order authorised where the same will cross over or under or otherwise affect any railway or canal or any part of the works or property of the Midland Railway Company (hereinafter called "the Midland Company") the Undertakers shall (except so far as it may be otherwise agreed between the

Midland Company and the Undertakers) be subject to the following conditions:—

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- (1) All such works shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Midland Company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Undertakers of his objections thereto he shall be deemed to have approved thereof :
- (2) If within fourteen days after the receipt of any such plans and drawings the Midland Company give to the Undertakers notice that they desire themselves to construct so much of the works as will cross over or under any railway canal or work belonging to them the Midland Company may themselves execute such works and recover the reasonable costs thereof from the Undertakers :
- (3) All works which the Undertakers may execute under this section shall be so constructed as to cause no avoidable injury to the railways canal works and property of the Midland Company or avoidable interruption to the passage or conduct of traffic over the same and if in consequence of the execution of such works any injury be caused to the said railways canal works and property or any interruption be caused to the traffic the Undertakers shall make full compensation to the Midland Company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration :
- (4) The Undertakers shall bear and on demand pay to the Midland Company the reasonable expense of the employment by that Company during the execution of any work affecting their Buckland Hollow Branch tramway where the same crosses the bridle lane leading from Lower Hartshay to Upper Hartshay of a sufficient number of inspectors watchmen and signalmen to be appointed by that company for watching and signalling the same with reference to and during the execution of any such work of the Undertakers and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Undertakers or their contractors in connection with such work :

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(5) Any dispute or difference which may arise between the Midland Company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the Midland Company or the Undertakers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of
Derbyshire
County
Council.

20. In executing the works and exercising the powers by this Order respectively authorised and conferred so far as the same affect main roads and sewers drains tunnels and other property vested in or under the jurisdiction of the Derbyshire County Council (in this section referred to as "the Council") the following provisions for the protection of the Council shall unless otherwise agreed in writing between the Undertakers and the Council have effect (that is to say):—

- (1) All mains pipes conduits and works to be laid in or along any main road shall so far as practicable be laid in such position in or at the side thereof as the Council in writing under the hand of their surveyor may reasonably direct and in the case of mains pipes and conduits at a depth of two feet at least from the top of the socket thereof to the surface of the roadway unless otherwise agreed to in writing by the surveyor of the Council :
- (2) Section 8 of the Gasworks Clauses Act 1847 incorporated with this Order shall be read and have effect as if the words "seven clear days" were inserted therein instead of the words "three clear days" and the notice therein mentioned shall be given to the surveyor of the Council:
- (3) The plan required by section 9 of the Gasworks Clauses Act 1847 shall when required by the Council be accompanied by a description of the proposed works and shall be delivered (except in cases of emergency) to the Council or their surveyor by the Undertakers not less than ten days before they commence to open or break up any main road or interfere with any sewer drain or tunnel or other property of the Council for the purpose of executing the works :
- (4) Nothing in this Order contained shall interfere with the right of the Council to alter the level of or deviate or improve any main road in or along which any pipes or other works of the Undertakers shall have been laid and in the event of any such alteration deviation or improvement being intended by the Council the Undertakers shall at the reasonable expense

of the Council in all things on receiving ten days' notice (or shorter in case of emergency) in writing under the hand of the clerk or the surveyor to the Council so to do with all convenient speed alter the position of any such pipes or works in such manner and to such extent as such notice may reasonably prescribe and sections 11 and 12 of the Gasworks Clauses Act 1847 shall (*mutatis mutandis*) except as to expense apply in the case of any delay on the part of the Undertakers in complying with such notice and the Council shall not except as above mentioned be liable to make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of any such alteration deviation or improvement as aforesaid Provided that during such alteration deviation or improvement as aforesaid the Council shall afford all reasonable facilities for temporarily carrying or supporting such pipes and other works so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such pipes Provided also that in the case of any main road vested in some authority other than the Council such authority shall for the purposes of this paragraph be substituted for the Council:

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- (5) All works shall be so executed by the Undertakers as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road and the Undertakers shall not open or break up at one time a greater length than one hundred yards of any such road nor more than fifty yards thereof where their works do not leave sufficient space for two carts to pass All extensions of mains and important renewals shall so far as reasonably practicable be executed at the period of the year when they shall occasion the least possible damage to the surface of the roadways:
- (6) The Undertakers shall pay to the road authority the reasonable costs which the road authority may incur in the repair and reinstatement of so much of any main road in which the pipes of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes:
- (7) The filling in reinstatement and making good pursuant to section 10 of the Gasworks Clauses Act 1847 shall be executed by the Undertakers to the reasonable satisfaction and in accordance with the requirements of the surveyor

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of the Council and the said section and section 11 of the said Act shall be read and have effect as if six months were mentioned therein instead of three months:

(8) The Council shall not except in case of negligence be liable for or in respect of any damage or injury done to any work of the Undertakers by reason of such work being laid at a depth below the surface of any main road insufficient for its protection from injury arising from the use of any steam or other roller not exceeding 15 tons in weight for the repair of such road or from the passage of the traffic on such road:

(9) If any difference at any time arises between the Council or their surveyor and the Undertakers touching this section or anything to be done or not to be done thereunder or the giving or withholding thereunder of any consent or the conditions of giving the same or any direction such difference shall be settled by an engineer to be appointed by agreement or in default of agreement by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply to every such arbitration.

Differences
with railway
or other
company.

21. If any difference arise between the Undertakers and any railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference (unless the same be otherwise specially provided for by the provisions of this Order) shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Testing of Gas.

Testing
place.

22. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Undertakers at their works within six months from the commencement of this Order.

Quality.

23.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

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(3) The Undertakers shall within six months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

24.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Price of Gas.

25. The standard price to be charged by the Undertakers for gas supplied by them shall be three shillings and eightpence per thousand cubic feet and so in proportion for any less quantity supplied Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital or stock as follows:—

Price of gas with sliding scale as to dividend.

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

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And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Miscellaneous.

Undertakers
to pay
interest on
deposit.

26. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to
supply gas
fittings
Fittings not
to be subject
to distress &c.

27.—(1) The Undertakers may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture meters engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Undertakers and the persons to or for whom the same are sold let fixed repaired or removed and such remuneration rents and charges shall be recoverable in the same manner as rents or sums due to the Undertakers for gas.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be.

(3) All fittings let by the Undertakers for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Undertakers shall only be entitled to the privileges and exemptions conferred by subsections (2) and (3) of this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

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28.—(1) Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas.

Anti-fluctua-
tors for gas
engines.

(2) The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

29.—(1) At least twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur.

Gas con-
sumers to
give notice to
Undertakers
before re-
moving.

(2) Notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

30. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of dis-
continuance.

31. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to
refuse to
supply per-
sons in debt
for other
premises.

32.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the

Period of
error in defec-
tive meters.

A.D. 1910. then last preceding quarter of the year unless it be proved to have
Ripley. first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Undertakers.

No penalty in case of unavoidable cause.

33. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Undertakers may contract with local authority and others for supply in bulk.

34. The Undertakers may enter into and carry into effect contracts with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods as may be agreed upon not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond their limits of supply.

Power to lay pipes in streets not dedicated to public use.

35. The Undertakers may but only with the consent of the owner of the soil of any street or road laid out or made but not dedicated to public use upon the application of the owner or occupier of any premises abutting on or being erected in such street or road supply such premises with gas and may lay down and take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for furnishing such supply.

Power to take licences for use of patents.

36. The Undertakers may subject to the provisions of this Order but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein contract for take and use any leave licence or authority to work use exercise or put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from the materials used therein.

8 Vict. c. 16. s. 140 incorporated.

37. Section 140 (Proof of debts in bankruptcy) of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation

the expression "the company" in the said section shall be construed to mean the Undertakers. A.D. 1910.
Ripley.

38. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. *Costs of Order.*

The SCHEDULE referred to in the foregoing Order.

GAS LANDS.

A piece of land containing five thousand eight hundred and sixty-five square yards or thereabouts belonging or reputed to belong to and in the occupation of the Undertakers and upon which their existing works are situate bounded on or towards the northerly and westerly sides by lands belonging or reputed to belong to the Butterley Company Limited on or towards the southerly side by Station Road and on or towards the easterly side by the private railway line of the said Butterley Company Limited.

ROWLEY REGIS AND BLACKHEATH GAS.

Order empowering the Rowley Regis and Blackheath Gas Company to supply gas in the township of Cakemore in the county of Worcester to raise additional capital and for other purposes. *Rowley Regis and Blackheath.*

1. This Order may be cited as the Rowley Regis and Blackheath Gas Order 1910 and the Rowley Regis and Blackheath Gas Act 1886 (in this Order referred to as "the Act of 1886") and this Order may be cited together as the Rowley Regis and Blackheath Gas Act and Order 1886 and 1910. *Short and collective titles.*

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." *Commencement of Order.*

3.—(1) So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):— *Incorporation of Acts.*

The distribution of the capital of the company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

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*Rowley Regis
and Black-
heath.*

- The forfeiture of shares for non-payment of calls ;
- The remedies of creditors of the company against the share-
holders ;
- The borrowing of money by the company on mortgage or bond ;
- The consolidation of the shares into stock ;
- The general meetings of the company and the exercise of the
right of voting by the shareholders ;
- The making of dividends ;
- The giving of notices ; and
- The provision to be made for affording access to the special Act
by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II.
(relating to additional capital) and Part III. (relating to debenture
stock) of the Companies Clauses Act 1863 the Companies Clauses Act
1869 the Gasworks Clauses Act 1847 and the Gasworks Clauses Act
1871 are hereby incorporated with this Order (except where the same
are expressly varied by or are inconsistent with the Act of 1886 or
this Order) and form part of this Order and the said provisions of the
said Gasworks Clauses Acts shall apply as well to the mains pipes and
works of the Undertakers in the township of Cakemore laid down or
constructed before the commencement of this Order as to any mains
pipes or works which may be laid down or constructed under the
authority of this Order.

(2) For the purposes of such incorporation the term "special Act"
in the said Acts shall mean this Order and the term "the company"
shall mean the Undertakers.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act
in whole or in part incorporated with this Order and by the Gas and
Water Works Facilities Act 1870 meanings are assigned have in this
Order the same respective meanings unless there be something in the
subject or context repugnant to such construction and in the construc-
tion of this Order or of any such Act for the purposes of this Order
the expression "the undertaking" shall mean the undertaking of the
Rowley Regis and Blackheath Gas Company as extended by this
Order.

Undertakers.

Undertakers.

5. The Rowley Regis and Blackheath Gas Company shall be
the Undertakers for the purposes of this Order and are in this Order
referred to as "the Undertakers."

Extension of Limits of Supply.

Extension
of limits
of supply.

6. The limits of supply of the Undertakers are hereby extended
so as to include the township of Cakemore in the rural district of

Halesowen in the county of Worcester (in this Order called "the additional limits of supply") and the Undertakers shall have and may exercise within the additional limits of supply all and the like powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply as defined by the Act of 1886.

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and Black-
heath.*

Additional Capital.

7. In addition to the capital authorised by the Act of 1886 (in this Order referred to as "the existing capital") the Undertakers may raise additional capital not exceeding in the whole twelve thousand five hundred pounds (in this Order referred to as "the additional capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by one of those modes and partly by another or others of them but the Undertakers shall not issue any share of a less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of share capital than will be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twelve thousand five hundred pounds.

Additional
capital.

8. Except as by this Order otherwise provided the additional capital and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the additional capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital.

Except as
otherwise
provided new
shares or
stock to be
subject to
same inci-
dents as other
shares or
stock.

9.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

Additional
capital to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine. Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply of the Undertakers and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as

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and Black-
heath.

the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits:

- (b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock as the case may be.

10. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that all such sums shall be deemed to be part of the paid-up or nominal capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form a special purposes fund.
11. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much thereof as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.
12. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the dividend at the authorised rate on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.
13. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the additional capital to which a preferential dividend shall be assigned.
14. The Undertakers may subject to the provisions of this Order borrow on mortgage of the undertaking such further sum as together with the amount already borrowed by the Undertakers under the powers of the Act of 1886 shall not exceed in the whole one-third part of the amount of the original capital authorised by the Act of 1886 and of the additional capital by this Order authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Undertakers have proved to the justice who is to certify under section 40 of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Undertakers and of such other evidence as he shall think sufficient he shall grant

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and Black-
heath.*

Application
of premium
arising on
issue of
shares or
stock.

Limit of
dividend on
additional
capital.

Dividend on
different
classes of
ordinary
shares or
stock to be
paid propor-
tionately.

Restriction as
to votes in
respect of pre-
ference shares
or stock.

Power to
borrow.

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and Black-
heath.

a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of
principal
moneys
secured by
existing
mortgages.

15. The principal moneys secured by all mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament before the commencement of this Order and subsisting at the commencement hereof shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Order.

Debenture
stock.

16. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 27 (Debenture stock) of the Act of 1886.

Priority of
mortgages
and debenture
stock
over other
debts.

17. All money raised or to be raised by the Undertakers on mortgage or debenture stock under the provisions of the Act of 1886 or under this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

For appoint-
ment of
receiver.

18. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principle the amount owing to the mortgagees by whom the application for a receiver is made shall be not less than one-tenth part of the total amount for the time being owing by the Undertakers on mortgage.

Power to
create a
special pur-
poses fund.

19.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works. A.D. 1910.
Rowley Regis and Blackheath.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

20. Notwithstanding anything contained in the Gasworks Clauses Act 1871 the following provisions as to the supply of gas to public lamps within the portion of the urban district of Rowley Regis situate within the limits of supply of the Undertakers shall have effect (that is to say) :— *For protection of Rowley Regis Urban District Council.*

The ordinary public lamps shall be supplied by the Undertakers at their own cost with properly governed batswing or fishtail burners to pass five cubic feet of gas per hour and the Undertakers shall supply the same with gas at a charge of two pounds ten shillings for each lamp so supplied if lighted during eight months in the year and if the Rowley Regis Urban District Council shall at any time desire to extend the period for lighting for a longer period than eight months they shall give notice thereof to the Undertakers and shall pay to the Undertakers a proportionate increase in price in respect of such extended period for each public lamp within the said district. The Undertakers shall for the several payments aforesaid provide the ordinary public lamps burning the quantity of gas aforesaid and furnish them and keep them furnished with all necessary and suitable columns burners pipes glass and fittings and shall light and extinguish such public lamps and substantially and properly maintain and clean the same. The time of lighting such public lamps shall be one hour after sunset and the time for extinguishing them shall be one hour before sunrise. Any of the provisions of this section may from time to time be modified by agreement between the Undertakers and the said council under their respective common seals. If any dispute shall arise between the Undertakers and the said council

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*Rowley Regis
and Black-
heath.*For protec-
tion of Wor-
cestershire
County
Council.

touching the provisions of this section such dispute shall be settled by arbitration in manner provided by the Arbitration Act 1889.

21. The following provisions for the protection of the county council of the administrative county of Worcester (in this section referred to as "the county council") shall have effect unless otherwise agreed between the Undertakers and the county council (that is to say):—

- (1) All mains pipes and works to be laid in or along any main road or in or upon or across any county or main road bridge shall be laid in such position in or at the side thereof and at such depth as the county council in writing under the hand of their surveyor may reasonably direct:
- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any main road or any county or main road bridge be not less than seven days instead of three days:
- (3) The plan required by section 9 of the last-mentioned Act shall as regards any county or main road bridge be accompanied by sections to suitable scales to clearly show the proposed works and shall be delivered (except in cases of emergency) to the county council or their surveyor by the Undertakers not less than in the case of a bridge one month and in all other cases seven days before the Undertakers commence to open or break up any main road or interfere with any county or main road bridge or other property of the county council for the purpose of executing the works:
- (4) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor to the county council. Such consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine:
- (5) The county council may alter the level of or deviate drain widen reconstruct or improve in any manner they think fit any main road in or along which any mains pipes or works of the Undertakers shall have been laid or remove alter widen raise or rebuild any county or main road bridge or the approaches thereto over near or attached to which any mains pipes or works of the Undertakers are carried as if this Order had not been made and the Undertakers shall forthwith on receiving notice in writing under the hand of the clerk or surveyor to the county council so to do alter the level or position of any such mains pipes or works or

temporarily or permanently support the same in the manner and to such extent as may reasonably be prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the county council shall not be liable to make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of any such alteration deviation improvement or other work of the county council. Provided that during the removal alteration widening raising or rebuilding of such county or main road bridge or the approaches thereto as aforesaid the county council shall at the cost of the Undertakers afford all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river :

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and Black-
heath.*

- (6) All works shall be so executed by the Undertakers as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Undertakers shall not break up at any one time a greater length than one hundred yards of any main road :
- (7) The Undertakers shall pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any main road or of the road over any county or main road bridge or the approaches thereto in which the mains pipes or other works of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes or other works :
- (8) If the Undertakers in the execution of any works in or affecting any such road or bridge as aforesaid shall cause any damage injury or disturbance to such road or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the county council after fourteen days' notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expenses of superintendence :
- (9) The county council shall not except in the case of their negligence be liable for any claim for damages in respect of

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and Black-
heath.*

any injury which may be caused to any mains pipes or other works belonging to the Undertakers through the reasonable and proper use by the county council of any steam-roller scarifier or other similar appliance:

- (10) If any difference arises at any time between the county council and the Undertakers touching this section or anything to be done or not to be done thereunder or the giving or withholding of any such consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the county council and the Undertakers and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

For protec-
tion of Great
Western
Railway
Company.

22. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply:—

- (a) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Order upon across under or adjoining or in any way affecting the railways now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the said railways the same shall be done under the superintendence (if the same shall be given) and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing Provided that if for twenty-eight days after such plans shall have been submitted to the said engineer he shall fail to give notice to the Undertakers of his disapproval thereof he shall be deemed to have given his approval:

- (b) All such works shall be done by and at the expense of the Undertakers who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers Provided always that

if within fourteen days after the receipt of the plans referred to in subsection (a) hereof the Great Western Company give notice to the Undertakers that they themselves desire where any mains or pipes require to be laid under or across any level crossing of their railway to lay the same the Great Western Company may do so at the costs charges and expenses of the Undertakers:

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and Black-
heath.*

All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations and works and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:

- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station works or property of the Great Western Company the Undertakers shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:
- (e) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Undertakers may have been constructed or laid the Great Western Company may on giving to the Undertakers fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency without notice divert support or carry the said works of the Undertakers across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that in such construction alteration or repair of their own works and in diverting supporting or carrying or otherwise dealing with the works of the Undertakers the Great Western Company shall not unnecessarily interfere with the supply of gas by the Undertakers through their said works:

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and Black-
heath.*

(f) Any dispute or difference which may arise between the Great Western Company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Undertakers or either of them and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Differences
with road
authority or
railway or
other com-
pany.

23. If any difference arise between the Undertakers and any road authority or railway or other company whose lands or works the Undertakers have power to cross or otherwise interfere with under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Power to lay
pipes in
streets not
dedicated to
public use.

24. The Undertakers may but only with the consent in writing of the owner of the soil of such street or road upon the application of the owner or occupier of any premises within the limits of supply of the Undertakers abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply.

Exemption of
fittings from
distress.

25. Any fittings let for hire under the provisions of section 41 (Power to supply gas fittings &c. for heating cooking and motive power) of the Act of 1886 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

Anti-fluctua-
tors for gas
engines.

26. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers.

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if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

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27. At least twenty-four hours' notice in writing shall be given to the Undertakers by every consumer of gas supplied by the Undertakers before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Gas consumers to give notice to Undertakers before removing.

28.—(1) A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice to discontinue supply of gas.

(2) Section 55 (Notice to company to discontinue supply) of the Act of 1886 is hereby repealed.

29. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Power to refuse to supply persons in debt for other property.

30. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

Period of error in defective meters.

31. The Undertakers may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

Undertakers may contract with local authority and others for supply in bulk.

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*Rowley Regis
and Black-
heath.*Charge for
gas supplied
by means of
prepayment
meters.

32.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per cent. per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Costs of
Order.

33. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SHEFFIELD GAS.

Sheffield.

Order making provision with respect to the quality of gas supplied by the Sheffield United Gas Light Company the holding of Ordinary Meetings of the Company and for other purposes.

Preliminary.

Short and
collective
titles.

1. This Order may be cited as the Sheffield Gas Order 1910 and the Sheffield Gas Act 1855 (in this Order referred to as "the Act of 1855") the Sheffield Gas Act 1866 (in this Order referred to as "the Act of 1866") the Sheffield Gas Order 1882 the Sheffield Gas Order 1890 (in this Order referred to as "the Order of 1890") the Sheffield Gas Order 1893 (in this Order referred to as "the Order of 1893") and this Order may be cited together as the Sheffield Gas Acts and Orders 1855 to 1910.

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2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Sheffield.
Commence-
ment of
order.

3. In the construction of this Order the expression "the Corporation" shall mean the Lord Mayor aldermen and citizens of the city of Sheffield the expression "the directors" shall mean the directors of the Sheffield United Gas Light Company and the expression "the auditor" shall mean the auditor appointed by the corporation under section 68 (Appointment of auditor) of the Act of 1855.

Interpreta-
tion.

Undertakers.

4. The Sheffield United Gas Light Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Quality of Gas.

5.—(1) The quality of gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place provided by the Undertakers under the Act of 1855 when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fifteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

Quality of
gas.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the corporation approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within three months from the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(4) Section 90 (Experimental meter) of the Act of 1855 section 20 (Quality of company's gas) of the Act of 1866 and section 16 (Quality of gas) of the Order of 1893 shall as from the expiration of three months from the commencement of this Order be repealed and from and after such date section 91 (Power to enter gasworks to examine quality of gas) of the Act of 1855 and section 21 (Experimental meters

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Sheffield.

to be provided in certain places) of the Act of 1866 shall apply and have effect as if the references in those sections to the experimental meter and apparatus provided in pursuance of or mentioned in the said section 90 of the Act of 1855 meant the burner photometer standard light and apparatus required to be provided under the provisions of subsections (2) and (3) of this section.

Undertakers
to supply
suitable
burners
gratis in
exchange for
those in use.

6. The Undertakers if and when required at any time within two years after the commencement of this Order by any consumer of gas supplied by the Undertakers shall supply him and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Order in substitution for the burners (not being incandescent burners) in use at the commencement of this Order.

Notice of the provisions of this section shall be given on each demand note of the Undertakers during the period of two years herein-before mentioned.

No penalty
in case of
unavoidable
cause.

7. No penalty shall be incurred by the Undertakers for defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such defect or excess was caused by circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Meetings Interim Dividends and Audit.

Date of
ordinary
meeting.

8.—(1) From and after the commencement of this Order section 52 (Ordinary meetings to be held half-yearly in Sheffield) of the Act of 1855 shall be read and have effect as if the words “and the future “ordinary meetings shall be held in the month of March in every “year or at such other time as shall be appointed for that purpose “by an order of a general meeting” were inserted in that section in lieu of the words “and the future general meetings shall be held in “the months of April and October in every year.”

(2) Section 6 (Amendment of section 52 of the Act of 1855) of the Order of 1890 is hereby repealed.

Retirement
of directors.

9. The directors holding office at the commencement of this Order shall continue in office until the ordinary meeting to be held in the year one thousand nine hundred and eleven under the provisions of this Order and after the commencement of this Order the meeting for the retirement rotation and election of directors subject to and in accordance with the provisions of the Act of 1855 and of the Companies Clauses Consolidation Act 1845 so far as applicable shall in every year be the ordinary meeting to be held under the provisions of this Order.

10. The directors may in any year without calling a meeting of shareholders and stockholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Undertakers provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half year one half of the respective prescribed rates of the profits divisible amongst the respective classes of shareholders and stockholders under the provisions of section 42 (Prescribing rate of profits to shareholders) of the Act of 1855 and section 10 (Limiting dividend on new shares) of the Act of 1866.

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—
Sheffield.
Interim
dividends.

11. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the city of Sheffield and any transfer made during the time when the transfer books are so closed shall as between the Undertakers and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of
transfer
books
previous to
declaring
interim
dividend.

12. Section 70 (Delivery of balance sheet to auditor) of the Act of 1855 shall from and after the commencement of this Order be read and have effect as if the words "or the declaration of" any interim dividend as the case may be" were inserted in that section at the end thereof.

Delivery of
balance sheet
to auditor.

13. Section 72 (Powers of auditor) of the Act of 1855 shall from and after the commencement of this Order be read and have effect as if the words "or the declaration of any interim dividend as the case may be" were inserted in that section after the words "before every ordinary meeting" and the word "next" were inserted before the words "ordinary meeting" at the end of the section.

Examination
of accounts
by auditor.

Issue of Debenture Stock.

14.—(1) Sections 9 10 11 and 12 of the Order of 1893 are hereby repealed and in lieu thereof the following provisions shall have effect with respect to the issue after the commencement of this Order of any debenture stock authorised to be created and issued under the powers of the Order of 1893.

Issue of
debenture
stock by
auction or
tender.

(2) All debenture stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of the city of Sheffield and to the secretary of the London Stock Exchange at least twenty-eight days

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Sheffield.

before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said city:

- (b) A reserve price shall be fixed by the directors and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise debenture stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any debenture stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of debenture stock or of ordinary shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 (as if in those provisions the expression "new stock" meant debenture stock and the expression "stockholders" included debenture stockholders) and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of debenture stock or of ordinary shares or stock that if the aggregate amount of debenture stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any debenture stock which has been offered in accordance with the foregoing provisions of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such debenture stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the debenture stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the debenture stock. A.D. 1910.
Sheffield.

15. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of Order.

SWANSEA GAS.

Order to extend the Limits of Supply of the Swansea Gaslight Company and for other purposes. Swansea.

1. This Order may be cited as the Swansea Gas Order 1910 and the Swansea Gas Act 1861 the Swansea Gas Order 1888 and the Swansea Gas Act 1898 (herein-after collectively referred to as "the Acts and Order 1861 to 1898") as amended by this Order and this Order may be referred to as "the Swansea Gas Acts and Orders 1861 to 1910." Short and collective titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed. Commencement of Order.

3. The Gasworks Clauses Acts 1847 and 1871 are (except where the same are expressly varied by the Acts and Order 1861 to 1898 or this Order) incorporated with and form part of this Order Provided that section thirteen of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the " company shall be alike in terms and amount under like circumstances " to all consumers" were added at the end of that section. Incorporation of Acts.

In this Order the several words terms and expressions to which by any Act in whole or in part incorporated with this Order or by the Gas and Water Works Facilities Act 1870 meanings are assigned shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

4. The Swansea Gaslight Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

5. The limits within which the Undertakers may supply gas and shall have and may exercise the powers privileges and authorities and shall be subject to the duties and obligations in relation thereto of the Definition and extension of limits of supply.

A.D. 1910. Swansea Gas Acts and Orders 1861 to 1910 shall be the borough of Swansea and all places and lands wholly or partly within a distance of one mile from the present boundary of the said borough (in this Order referred to as "the existing limits of supply") and the district herein-after more particularly described (in this Order referred to as "the new limits of supply") namely:—

Such portion of the parish of Llansamlet as is not included within the existing limits of supply or within the authorised limits of supply of any statutory gas company such portion of the parish of Clase Rural as lies within an area lying on the north and west of the existing limits of supply which area is bounded by an imaginary line commencing at the northern boundary of the existing limits of supply at a point seven hundred feet or thereabouts east of Dorg-lwyd (house) continuing along Rhydypanyd Road in a northerly direction to the bridge over the River Llan called "Pont Felin Wen" then following the course of the river in a south-westerly direction to Ford Pontbren Llwyd down to the remains of Brynwilach tramway bridge over the said river thence turning westerly along the road north of Brynwilach pits and house and continuing along such road to the junction of such road with the road leading from Llangyfelach to Velindre thence continuing in a southerly direction along the parish boundary which separates the parish of Penderry from the parish of Clase Rural until it joins the existing limits of supply at a point distant three hundred feet or thereabouts from the Bench mark 369.8 north-west of Heol ddu the parish of Penderry and the parish of Cockett all in the rural district of Swansea in the county of Glamorgan.

The area comprised within the new limits of supply is more particularly delineated upon a map deposited with the Board of Trade and signed by an assistant secretary to the Board and if there should be any difference between the description contained in this section and the area delineated upon such map the latter shall prevail.

As to price
of gas.

6. Notwithstanding anything contained in the Swansea Gas Order 1888 the price to be charged by the Undertakers for gas supplied by them within a distance of one mile of the existing boundary of the borough of Swansea shall as from the 1st January 1911 be the same as that for the time being charged by them within the existing borough of Swansea.

The price to be charged by the Undertakers for gas supplied by them at a greater distance than one mile from the existing boundary of the borough of Swansea shall except in the parish of Oystermouth not exceed by more than fourpence per thousand cubic feet the price

for the time being charged by them within the existing borough of Swansea. A.D. 1910.
Swansea.

7. The Undertakers shall within a period of twelve months from the date of the commencement of this Order extend their mains along the main road leading to Gower as far as the Baptist chapel at Killay in the parish of Cockett and also along the main road leading from Swansea to Loughor to a point within 200 yards of Llewitha Bridge in the parish of Penderry. As to extension of mains in parishes of Cockett and Penderry.

8. The reinstatement and making good of roads within the county of Glamorgan broken up by the Undertakers in the exercise of their statutory powers shall include the application of a sufficient layer of surface metalling of the same specification as that employed by the road authority for the particular road and where the road is ordinarily repaired by the use of a steam or other roller shall include the use of such roller on the places where the road has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining and such reinstatement and making good shall be carried out at the expense of the Undertakers and to the reasonable satisfaction of the road authority. As to reinstatement of roads in county of Glamorgan.

9. In executing the works authorised by this Order where the same will cross over or under or otherwise affect any railway or any part of the works or property of the Midland Railway Company the Great Western Railway Company or the London and North Western Railway Company respectively (herein-after separately referred to as "the railway company") the Undertakers shall (except so far as it may be otherwise agreed between the railway company and the Undertakers) be subject to the following conditions:— For protection of Midland Railway Company Great Western Railway Company and London and North Western Railway Company.

- (1) All such works shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the railway company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section Provided that if for twenty-eight days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Undertakers of his objections thereto he shall be deemed to have approved thereof:
- (2) If within twenty-eight days after the receipt of any such plans and drawings the railway company give to the Undertakers notice that they desire themselves to execute any part of the work (other than the actual laying down of the mains

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Swansea.

- which shall be done by the Undertakers) which will cross over or under any railway or work belonging to them the railway company may themselves execute such part of the work and recover the reasonable costs thereof from the Undertakers :
- (3) All works which the Undertakers may execute under this Order shall be so constructed as to cause no injury to the railways works and property of the railway company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Undertakers shall make full compensation to the railway company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided :
- (4) The Undertakers shall bear and on demand pay to the railway company the reasonable expense of the employment by the railway company during the execution of any work affecting their railways of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same with reference to and during the execution of any such work of the Undertakers and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Undertakers or their contractors :
- (5) Any additional expense which the railway company may reasonably and properly incur in maintaining their existing railway bridges and works by reason of the existence of any mains or pipes of the Undertakers laid under the powers of this Order across or under such bridges or works shall be paid by the Undertakers :
- (6) Any dispute or difference which may arise between the railway company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the railway company or the Undertakers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

10. If any difference arise between the Undertakers and any road authority or railway canal or other company or person whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

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Swansea.

Differences with road authority or railway or other company.

11. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond their limits of supply.

Power to contract for sale of gas in bulk.

12. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

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